

CHAPTER 46

An Act to repeal the Animals (Anaesthetics) Act, 1919, and to extend the provisions of the Protection of Animals Acts in relation to the performance of operations on animals. [30th July, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Use of
anaesthetics in
operations on
animals.

1.—(1) If any operation to which this section applies is performed on any animal without the use of an anaesthetic so administered as to prevent any pain during the operation, that operation shall be deemed for the purposes of the principal Act to be an operation which is performed without due care and humanity.

(2) This section applies to any operation with or without the use of instruments which involves interference with the sensitive tissues or the bone structure of an animal, other than—

(a) the making of injections or extractions by means of a hollow needle; or

(b) an operation included in the First Schedule to this Act.

(3) The Minister of Agriculture and Fisheries and the Secretary of State, acting jointly, may, after consultation with the Royal College of Veterinary Surgeons and with such persons appearing to the Minister and Secretary of State to represent agricultural interests as may appear to the Minister and Secretary of State appropriate, by order amend any of the ages specified in paragraph 6 of the said First Schedule; and any order under this subsection—

(a) shall be made by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament; and

(b) may be varied or revoked by a subsequent order thereunder.

(4) This Act shall be construed as one with the principal Act, so, however, that in this Act the expression "animal" shall not include a fowl or other bird, fish or reptile.

(5) In this section, the expression "the principal Act" means—

(a) in relation to England and Wales, the Protection of Animals Act, 1911; and

(b) in relation to Scotland, the Protection of Animals (Scotland) Act, 1912;

as amended by or under any other enactment.

2.—(1) This Act may be cited as the Protection of Animals Citation, repeal, extent and commencement.
(Anaesthetics) Act, 1954.

(2) This Act and the Acts specified in Part I of the Second Schedule to this Act may be cited together as the Protection of Animals Acts, 1911 to 1954.

(3) This Act and the Acts specified in Part II of the said Second Schedule may be cited together as the Protection of Animals (Scotland) Acts, 1912 to 1954.

(4) The Animals (Anaesthetics) Act, 1919, is hereby repealed.

(5) This Act shall not extend to Northern Ireland.

(6) This Act shall come into operation on the first day of September, nineteen hundred and fifty-four.

SCHEDULES

FIRST SCHEDULE

Section 1.

EXCEPTED OPERATIONS

1. Any experiment duly authorised under the Cruelty to Animals Act, 1876.

2. The rendering in emergency of first aid for the purpose of saving life or relieving pain.

3. The docking of the tail of a dog before its eyes are open.

4. The amputation of the dew claws of a dog before its eyes are open.

5. The castration of any male dog before it has reached the age of three months or of any male cat before it has reached the age of six months.

6. The castration of a male animal specified in the following table before it has reached the age so specified, that is to say—

horse	...	...	...	...	twelve months.
ass or mule	...	...	...	...	twelve months.
bull	...	...	...	...	twelve months.
sheep	...	...	...	...	twelve months.
goat	...	...	...	...	three months.
pig	...	...	...	...	seven months.

7. Any minor operation performed by a veterinary surgeon or veterinary practitioner, being an operation which, by reason of its quickness or painlessness, is customarily so performed without the use of an anaesthetic.

8. Any minor operation, whether performed by a veterinary surgeon or veterinary practitioner or by some other person, being an operation which is not customarily performed only by such a surgeon or practitioner.

Section 2.

SECOND SCHEDULE

ACTS WHICH MAY BE CITED TOGETHER

PART I

The Protection of Animals Act, 1911.
 The Protection of Animals Act (1911) Amendment Act, 1912.
 The Protection of Animals Act (1911) Amendment Act, 1921.
 The Performing Animals (Regulation) Act, 1925.
 The Protection of Animals (Amendment) Act, 1927.
 The Protection of Animals (Cruelty to Dogs) Act, 1933.
 The Protection of Animals Act, 1934.
 The Protection of Animals (Amendment) Act, 1954.

PART II

The Protection of Animals (Scotland) Act, 1912.
 The Protection of Animals (Scotland) Act, 1912, Amendment Act, 1921.
 The Performing Animals (Regulation) Act, 1925.
 The Protection of Animals Act, 1934.
 The Protection of Animals (Cruelty to Dogs) (Scotland) Act, 1934.
 The Protection of Animals (Amendment) Act, 1954.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Cruelty to Animals Act, 1876	39 & 40 Vict. c. 77.
Protection of Animals Act, 1911	1 & 2 Geo. 5. c. 27.
Protection of Animals (Scotland) Act, 1912 ...	2 & 3 Geo. 5. c. 14.
Protection of Animals Act (1911) Amendment Act, 1912	2 & 3 Geo. 5. c. 17.
Animals (Anaesthetics) Act, 1919	9 & 10 Geo. 5. c. 54.
Protection of Animals Act (1911) Amendment Act, 1921	11 & 12 Geo. 5. c. 14.
Protection of Animals (Scotland) Act, 1912, Amendment Act, 1921	11 & 12 Geo. 5. c. 22.
Performing Animals (Regulation) Act, 1925 ...	15 & 16 Geo. 5. c. 38.
Protection of Animals (Amendment) Act, 1927	17 & 18 Geo. 5. c. 27.
Protection of Animals (Cruelty to Dogs) Act, 1933	23 & 24 Geo. 5. c. 17.
Protection of Animals Act, 1934	24 & 25 Geo. 5. c. 21.
Protection of Animals (Cruelty to Dogs) (Scotland) Act, 1934	24 & 25 Geo. 5. c. 25.
Protection of Animals (Amendment) Act, 1954	2 & 3 Eliz. 2. c. 40.